

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

MSRF, INC., *Complainant*

v.

YANG MING TRANSPORT CO., *Respondent*.

DOCKET NO. 22-21

Served: April 24, 2023

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER ON COMPLAINANT'S FILINGS

Complainant MSRF, Inc. ("MSRF" or Complainant) filed a complaint alleging violations of the Shipping Act Sections 41102(c), 41104(a)(2), 41104(a)(5), 41104(a)(9), and 41104(a)(10) regarding negotiations for and completion of a written service contract. Complaint at 4-6. Respondent Yang Ming Marine Transport Co. ("Yang Ming" or Respondent) denies the allegations and raises affirmative defenses. Answer at 18-20.

Multiple scheduling proposals have been made and multiple orders have issued during the course of this proceeding. *See* Scheduling Order, Amended Scheduling Order, Second Amended Scheduling Order, and Second Order on Motion for Reconsideration. In the Second Order on Motion for Reconsideration, the most recent order addressing the parties' request to amend the schedule for filing of briefs, the following schedule was ordered:

April 21, 2023	Complainant's Brief, Proposed Findings of Fact, and Appendix
June 14, 2023	Respondent's Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix
June 28, 2023	Complainant's Reply Brief and Responses to Respondent's Proposed Findings of Fact

On April 21, 2023, the date the Complainant's initial brief, proposed findings of fact, and appendix were due, Complainant filed a Motion for Summary Decision, along with Proposed Findings of Fact, Appendix, and a Motion for Confidential Treatment.

The time for filing a dispositive motion in this proceeding has passed since discovery has closed, the initial brief was scheduled to be filed on April 21, 2023, and Complainant did not request an extension of the Scheduling Order. Deciding a dispositive motion at this juncture would only delay the proceeding and prevent the undersigned from resolving disputed facts. Given the timing of the submission labeled as a "Motion for Summary Decision," along with the corresponding filing of the Proposed Findings of Fact and Appendix, it is likely that

Complainant intended the filing to be its Initial Brief. Accordingly, the Motion for Summary Decision will be accepted as the Complainant's Initial Brief. Respondent should not respond to the Motion for Summary Decision as described under 46 C.F.R. § 502.70; rather, Respondent should abide by the briefing schedule above and submit its Opposition Brief, Responses to Proposed Findings of Fact, Proposed Findings of Fact, and Appendix on June 14, 2023.



Linda S. Harris Crovella
Administrative Law Judge